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Dated: July 18, 2024
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
505 Eighth Avenue, Suite 701
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To: City of New York

New York City Police Department

Detective Robert Regnier, Shield 2946 of the 47 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	
Jeremy Turnbull,	:
	:
Plaintiff,	:
	:
	: VERIFIED COMPLAINT
-against-	:
	:
City of New York, New York City Police Department,	:
Detective Robert Regnier, Shield 2946 of the 47	:
Precinct and New York City Police Officers John Doe,	:
	:
Defendants.	:
-----X	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Jeremy Turnbull, (hereinafter referred to as “TURNBULL”) resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Detective Robert Regnier, Shield 2946 of the 47 Precinct (hereinafter referred to as “REGNIER”) was employed by the New York City Police Department.
3. New York City Police Officers John Doe, those officers involved in the arrest of TURNBULL, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

6. On or about October 6, 2023 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

7. On or about March 8, 2024 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

8. That on or about April 6, 2022 at approximately 1:00 PM in the vicinity of 4111 Laconia Avenue, Bronx NY, Plaintiff was arrested and handcuffed after being directed to by REGNIER and DOES he was directed to come to the 47 precinct.

9. That at no time had Plaintiff engaged in any illegal or unlawful activity that would have warranted an arrest by REGNIER or DOES.

10. That at no time had Plaintiff engaged in any illegal or unlawful activity on March 11, 2022.

11. That at no time had Plaintiff, on March 11, 2022 possessed a firearm and/or fired a firearm at another person.

12. That despite not having engaged in the above conduct, Plaintiff was handcuffed and arrested by REGNIER and DOES.

13. That while Plaintiff was inside of the 47 precinct he was subjected to a strip search and that nothing of an illegal nature was recovered.
14. That while at the 47 precinct, he was placed into a cell with other males for several hours.
15. That after several hours of being held in a cell at the PSA 7 precinct, Plaintiff was removed to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY.
16. That while at Bronx County Central Booking, Plaintiff was held in a cell with other males for several hours.
17. That on or about, April 8, 2022, after spending several hours in Bronx County Central Booking he was arraigned and charged with Attempted Murder and related offenses.
18. That at the time of the Bronx Criminal Court arraignment, bail was set and Plaintiff was remanded to the custody of the New York City Corrections Department for several days.
19. That on and between April 8, 2022 and August 25, 2023, Plaintiff made several court appearances until his case was dismissed upon application of the Bronx County District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

20. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 19, as is more fully stated herein at length.
21. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
22. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

23. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

24. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

25. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days of work.

26. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days of school.

27. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.

29. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

30. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

35. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

36. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, DURST and DOES persisted in their false claim that Plaintiff attempted to murder someone. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. At all times pertinent hereto, REGNIER and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

39. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that REGNIER and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. The City of New York and New York City Police Department's failure to provide adequate training and supervision to REGNIER and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

42. The City of New York and New York City Police Department maintained a policy of arresting people and claiming that they attempted to murder people when in fact they did not.

43. The City of New York and New York City Police Department maintained a policy of not disciplining or terminating police officers who engaged in claiming that people attempted to murder other people when they did in fact not do so.

44. The City of New York and New York City Police Department maintained a policy of arresting people and claiming that they attempted to murder another person when there was no witness who informed police that anyone committed the crime.

45. The City of New York and New York City Police Department knew that REGNIER was the subject of twenty-three (23) Civilian Complaint Review Board complaint alleging that REGNIER violated the civil rights of others and yet they continued to employ REGNIER.

46. The City of New York and New York City Police Department knew that REGNIER was the subject of a civil rights violation lawsuit, Kelly Blount v. City of New York et al, index number 16CV04505, in the United States District Court, Southern District of New York and yet defendants continued to employ REGNIER.

47. The City of New York and New York City Police Department knew that REGNIER was the subject of a civil rights violation lawsuit, Michael Pena v. Detective Robert Regnier et al, index number 14CV05839, in the United States District Court, Southern District of New York and yet defendants continued to employ REGNIER.

48. The City of New York and New York City Police Department knew that REGNIER was the subject of a civil rights violation lawsuit, Francis v. City of New York et al, Index number 021481/2015, in Bronx County Supreme Civil Court and yet defendants continued to employ REGNIER.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

49. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

51. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Jason Steinberger
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Attorney for Plaintiffs
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STATE OF NEW YORK: COUNTY OF NEW YORK

ATTORNEY VERIFICATION

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: July 18, 2024

Jason Steinberger
Jason A. Steinberger